

Introduction to IT-Law

– Martin Miernicki

Credit: Uni Graz / David Schreyer

Timeline

12.3.2026	Introduction into IT Law	Prof. Tina Ehrke-Rabel
19.3.2026	Data Protection Law and AI Act	Prof. Tina Ehrke-Rabel
16.04.2026	GovTech, Cryptoassets	Prof. Tina Ehrke-Rabel
23.04.2026	Innovation – Regulation – Responsibility	Prof. Miernicki
30.04.2026	IP Law (Focus: Copyright)	Prof. Miernicki
07.05.2026	E-Commerce, Payments	Prof. Miernicki
28.5.2026	Mediation, Judiciary and IT	Dr. Christian Aschauer

Overview

1. Innovation, Regulation, Responsibility
2. Intellectual Property – Basic Concepts
3. Copyright law
4. E-Commerce – Basic Concepts
5. E-Commerce Law
6. Electronic Payments

How to find EU law and ECJ judgements

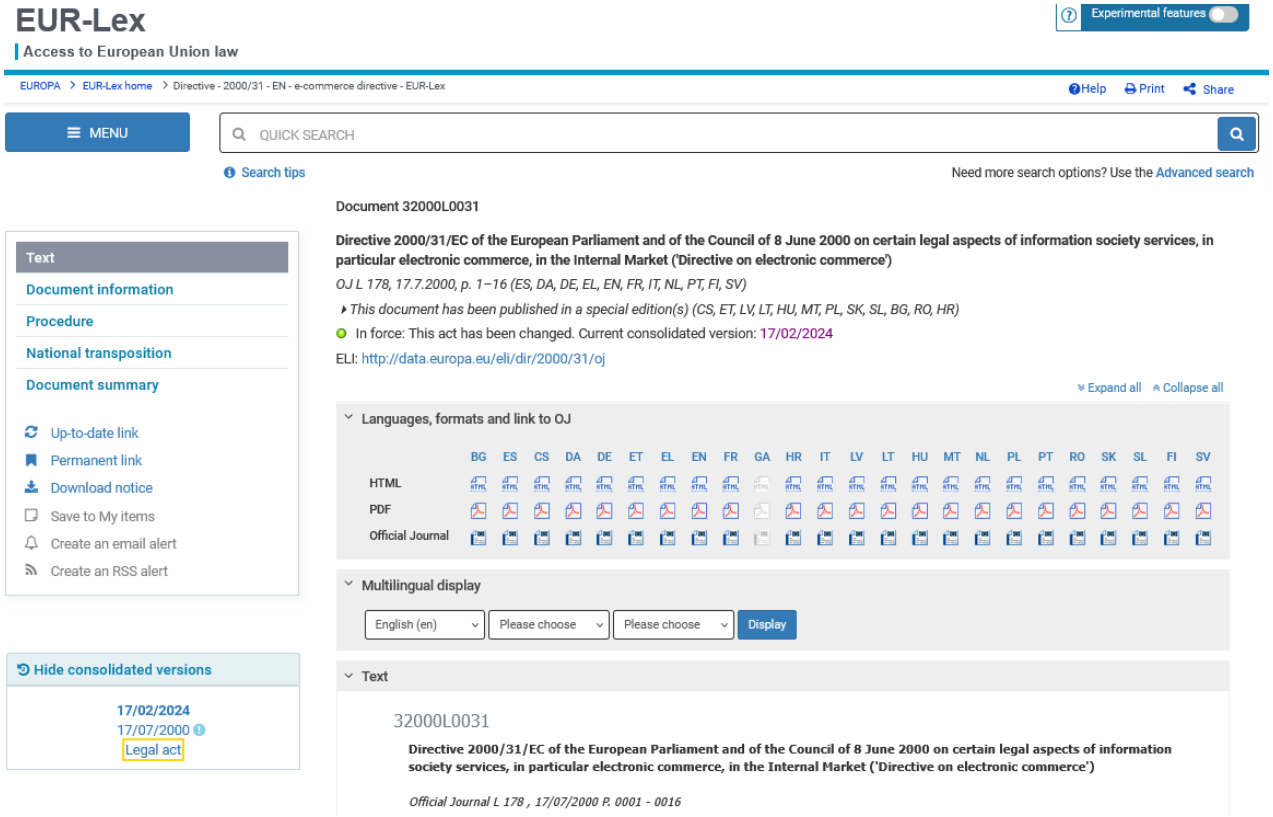
Primary law and **secondary law** of the European Union can be found at EUR-Lex.

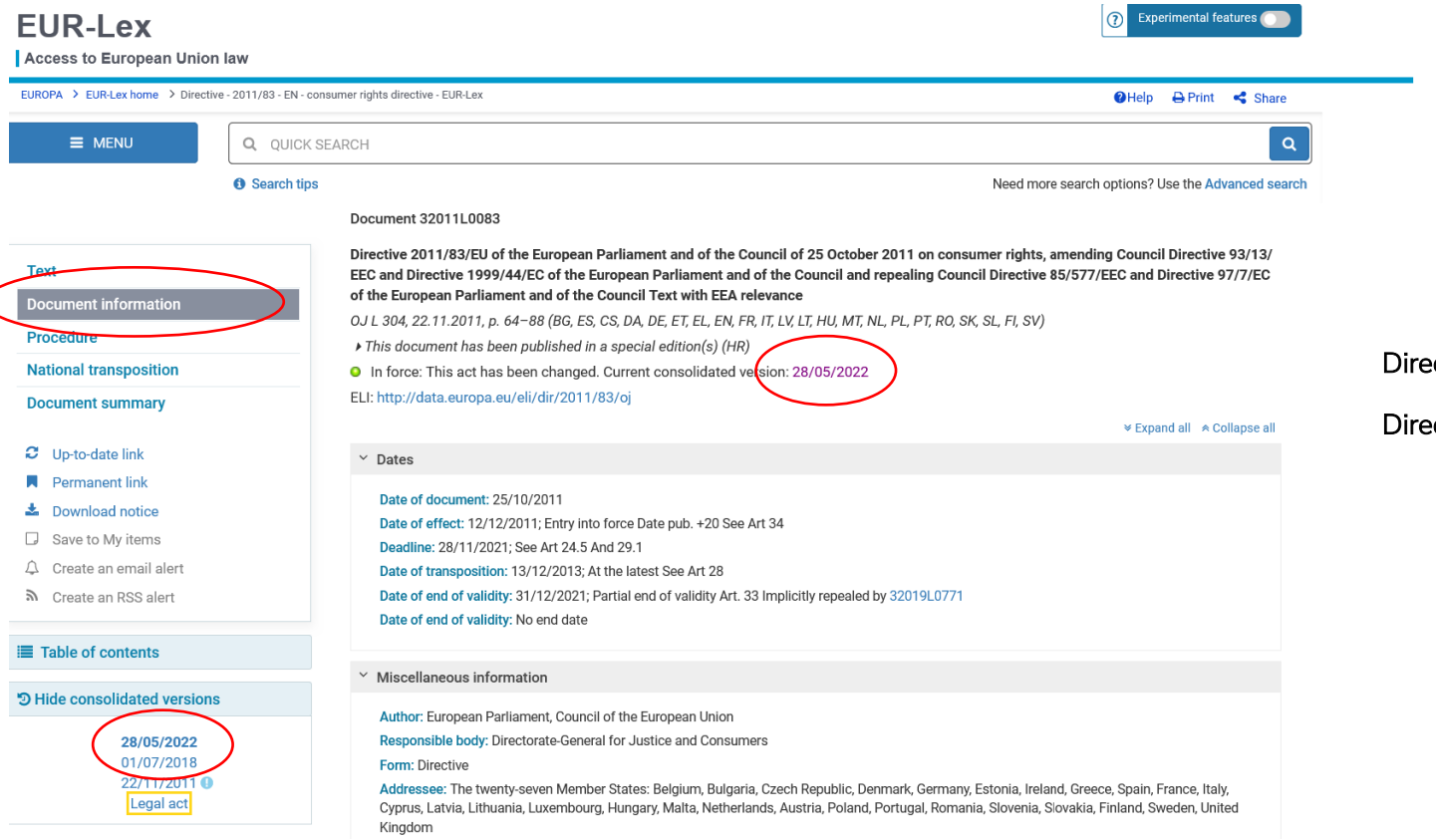
- Note: Many legal acts have been introduced or amended recently; the amendments appear when you click the link “Document information” in the column left to the legal text (scroll down).

Judgments of the European Court of Justice (ECJ) can be accessed via Curia.

- Note: The search form offers several search criteria, *e.g.*, you can search for case law that references a legal act or a single provision of EU law (“References to case-law or legislation”)

Austrian law and court rulings can be found in authentic form at https://www.ris.bka.gv.at


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Access to European Union law
Experimental features
EUROPA > EUR-Lex home > Directive - 2000/31 - EN - e-commerce directive - EUR-Lex
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Directive 2000/31/EC of the European Parliament and of the Council of 8 June 2000 on certain legal aspects of information society services, in particular electronic commerce, in the Internal Market ('Directive on electronic commerce')
OJ L 178, 17.7.2000, p. 1–16 (ES, DA, DE, EL, EN, FR, IT, NL, PT, FI, SV)
This document has been published in a special edition(s) (CS, ET, LV, LT, HU, MT, PL, SK, SL, BG, RO, HR)
In force: This act has been changed. Current consolidated version: 17/02/2024
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Legal act
32000L0031
Directive 2000/31/EC of the European Parliament and of the Council of 8 June 2000 on certain legal aspects of information society services, in particular electronic commerce, in the Internal Market ('Directive on electronic commerce')
Official Journal L 178 , 17/07/2000 P. 0001 - 0016



Directive (EU) 2024/825

Directive (EU) 2023/2673

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News



Visit by the Romanian Constitutional Court

On 20 and 21 April 2026, a delegation from the Romanian Constitutional Court, led by its President Elena-Simina Tănăsescu,...

Judgment: C-769/22 Commission v Hungary

Can a Member State prohibit or restrict access to content portraying or promoting gender identities that differ from the sex assigned at birth,...

Hearing: Case C-524/24 Italy v Austria

On Tuesday 21 April 2026, the Court of Justice will hear case C-524/24 *Italy* v *Austria* – a case brought by Italy against Austria over...

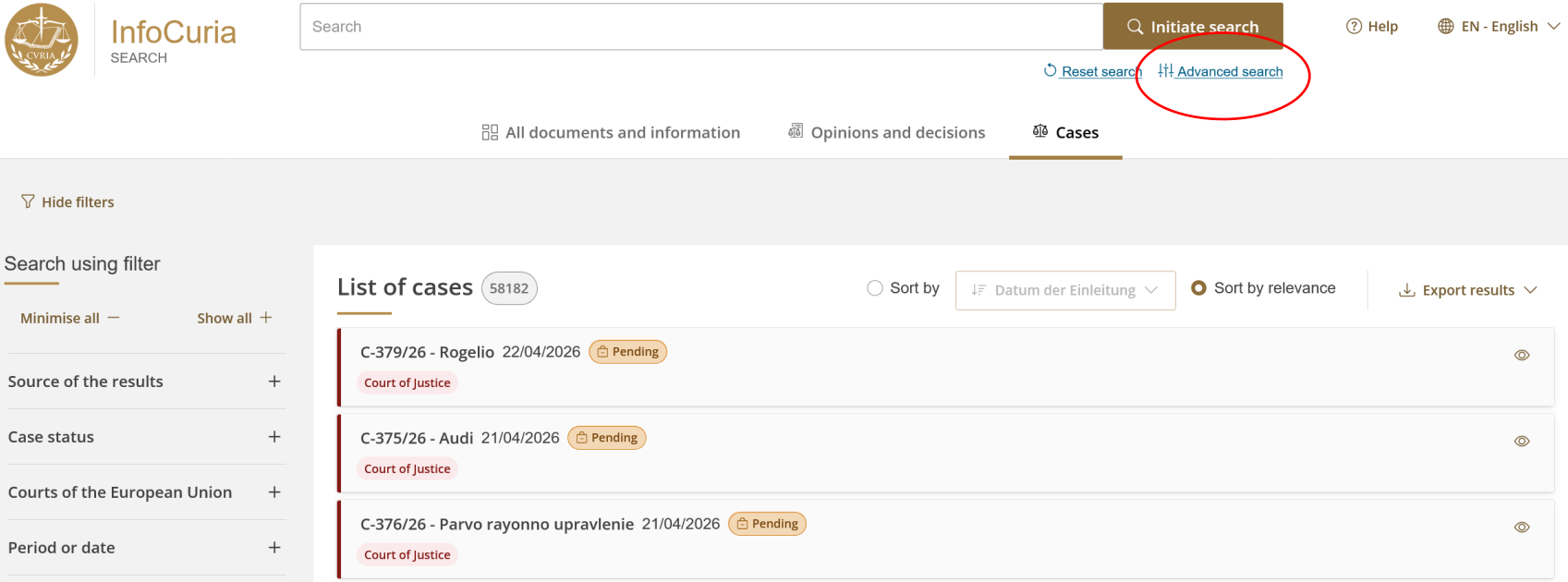
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AI challenges and opportunities for the judiciary

Judge Zilgalvis discusses how artificial intelligence is reshaping legal practice, the impact of the EU AI Act, and its relevance to...

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C-375/26 - Audi 21/04/2026 Pending
Court of Justice
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Court of Justice

Where are you from?

We work for tomorrow

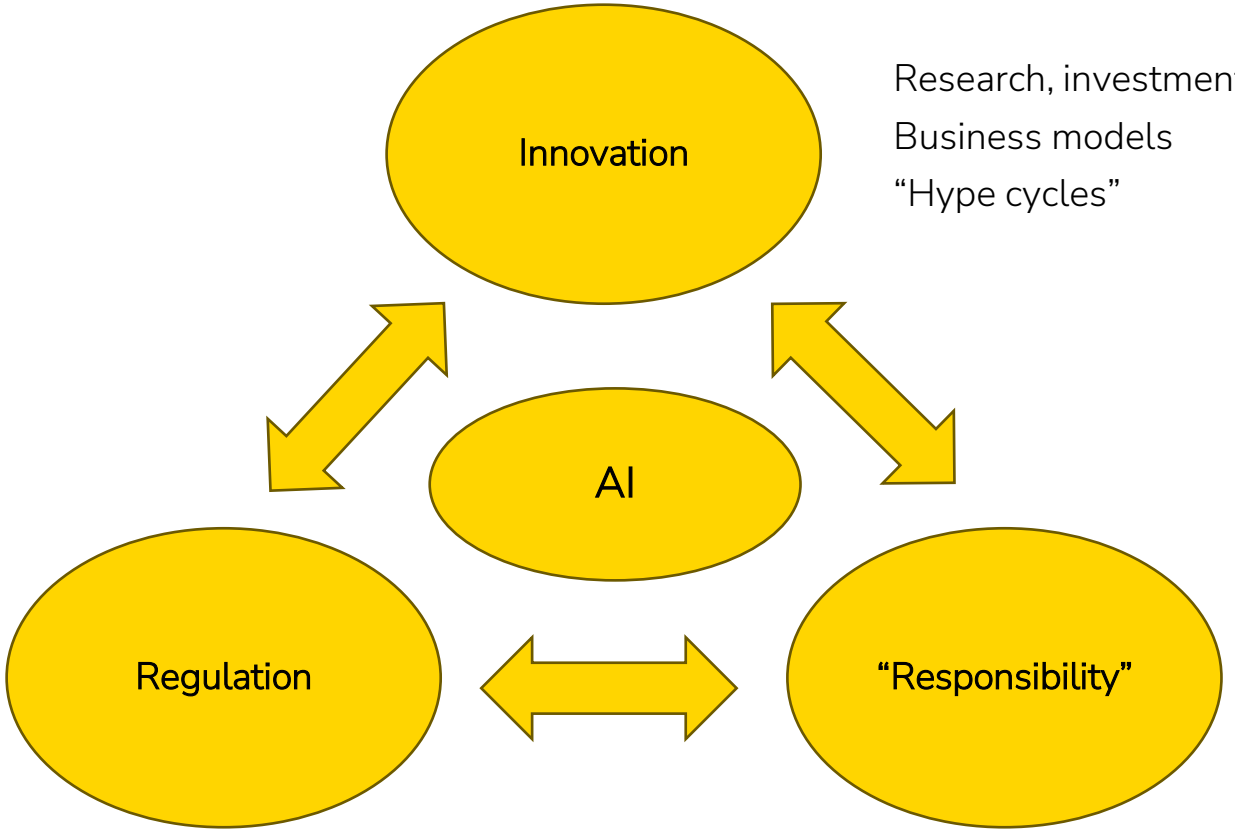
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1

Innovation
Regulation
Responsibility



Research, investments
Business models
“Hype cycles”

Legal instruments
Standardization
“Deregulation”

Liability
Attribution
Sanctions, fines

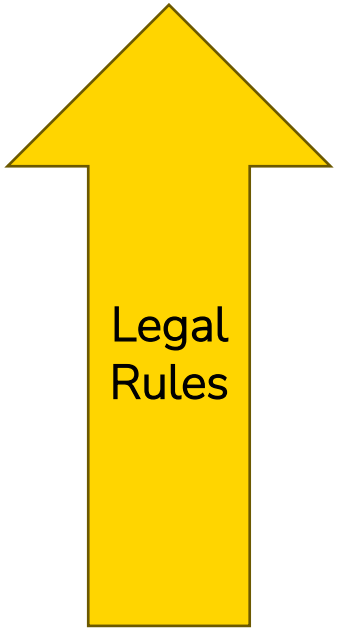
“Industry 1.0-4.0”

Industry 4.0 – e.g. IoT, AI

Industry 3.0 – e.g. computer, internet
starting ≈ in the 20th century

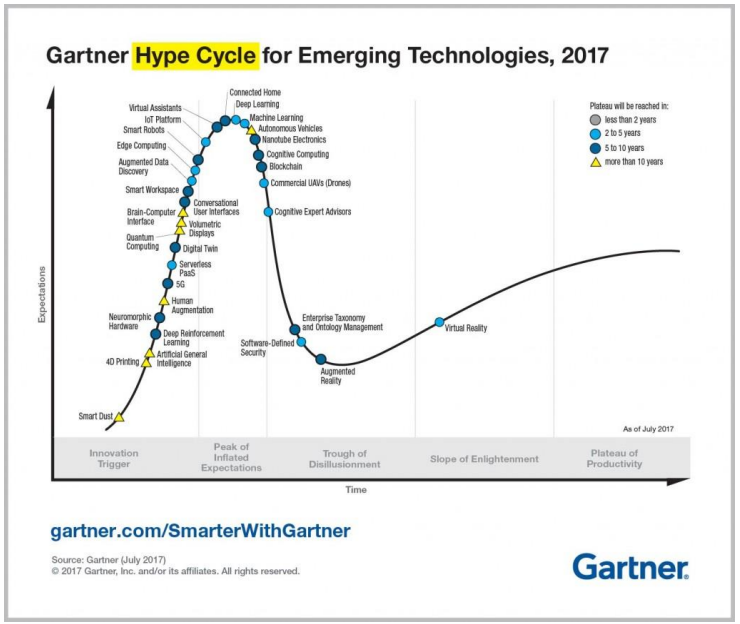
Industry 2.0 – e.g. assembly lines
starting ≈ in the 19th century

Industry 1.0 – e.g. steam engine
starting ≈ in the 18th century

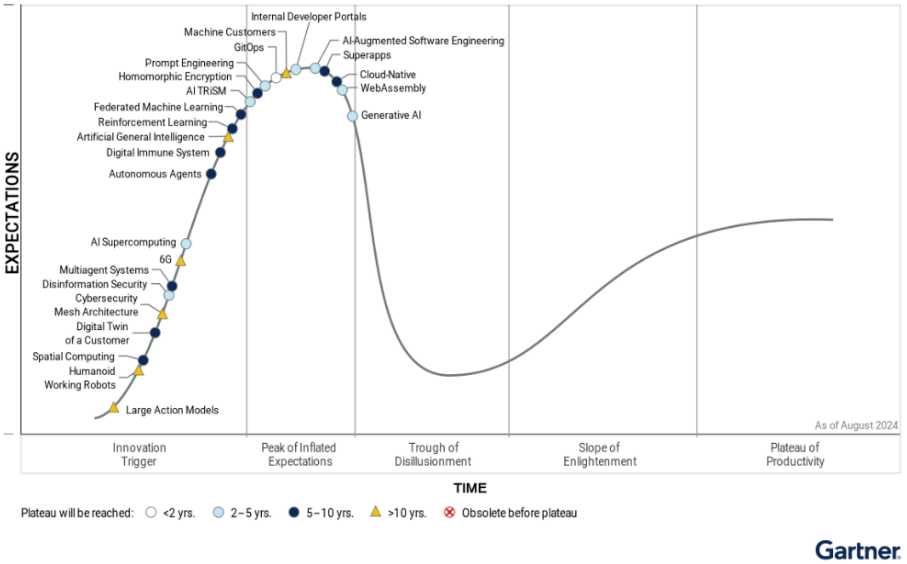


“Hype cycles“





Hype Cycle 2017



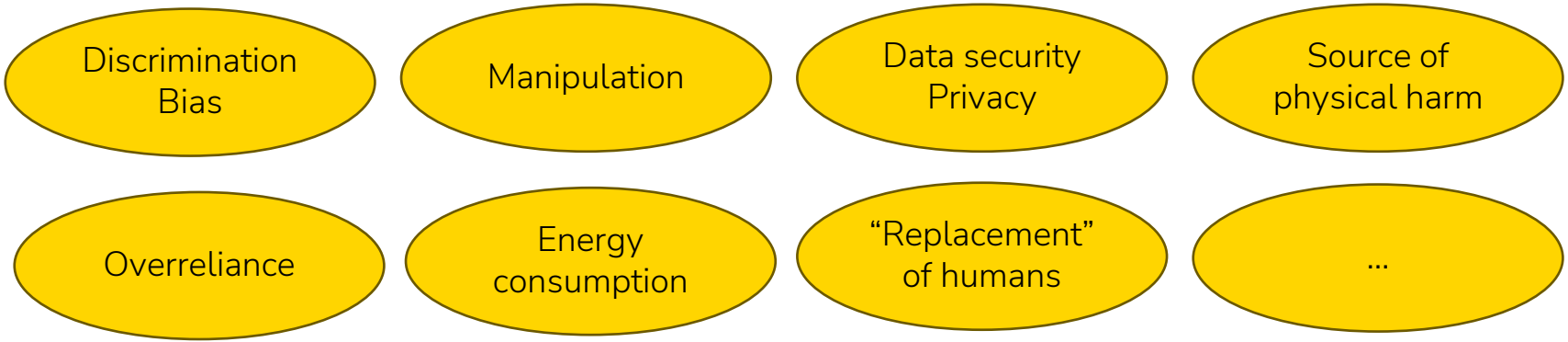
Hype Cycle 2024

Regulation I

Reasons for regulation

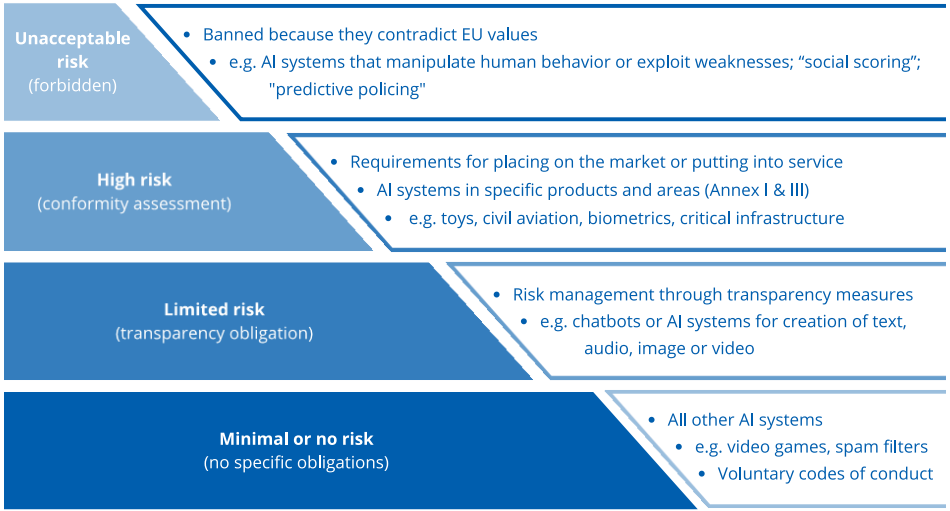
- Object of protection: health, privacy, property, environment, functioning of the market (e.g. transactions costs), values (legally recognized, e.g. art. 2 TEU; socially recognized)…
- Risk-based approach (cf. recital 26 AI Act) – precautionary principle (cf. art. 191 TFEU)

  ↳ 'risk' means the combination of the **probability of an occurrence of harm** and the **severity of that harm** – art. 3(2) AI Act



AI Act: Risk levels for AI systems

Not all AI systems fall into the regulated area - the higher the risk, the stricter the rules



AI Service Desk ai.rtr.at RTR

https://www.rtr.at/rtr/service/ki-servicestelle/ai-act/risikostufen_ki-systeme.en.html

Regulation II

Instruments of regulation

- Binding rules (cf. art. 288 TFEU) – self-regulation, codes of conducts (cf. art. 95 AI Act)
- Standardization – certification (cf. art. 40 AI Act)
- Adaptation on “level 2” – delegated acts, implementing acts (cf. e.g. art. 97 AI Act, art. 290, 291 TFEU)
- “Soft law” (e.g. guidelines – art. 96 AI Act)
- Prohibition (cf. art. 5 AI Act) – requirements (cf. art. 8 et seq. AI Act) – taxation/subsidies
- General rules – “taylor-made” rules – technology neutrality
- Legal certainty – flexibility
- Trust in technology
  - cf. „**trustworthy AI**“, e.g. recitals 1, 2, 3, 8, 20, 27, 89, 123, 165, 176, art. 1(1) AI Act
  - European Declaration on Digital Rights and Principles for the Digital Decade, OJ C 2023/23, 1 points 8, 9
  - Ethics guidelines for trustworthy AI of the High-Level Expert Group on Artificial Intelligence (AI HLEG)

“Deregulation“

<-> simplification

PRESS RELEASE | Nov 19, 2025 | Brussels | 5 min read

Simpler EU digital rules and new digital wallets to save billions for businesses and boost innovation

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Europe's businesses, from factories to start-ups, will spend **less time on administrative work and compliance and more time innovating and scaling-up**, thanks to the **European Commission's new digital package**. This initiative opens opportunities for European companies to grow and to stay at the forefront of technology while at the same time promoting Europe's highest standards of fundamental rights, data protection, safety and fairness.

At its core, the package includes a **digital omnibus** that streamlines rules on artificial intelligence (AI), cybersecurity and data, complemented by a **Data Union Strategy** to unlock high-quality data for AI and **European Business Wallets** that will offer companies a single digital identity to simplify paperwork and make it much easier to do business across EU Member States.

The package aims to ease compliance with simplification efforts estimated to save up to €5 billion in administrative costs by 2029. Additionally, the European Business Wallets could unlock another €150 billion in savings for businesses each year.

1. Digital Omnibus

Omnibus I package - Commission simplifies rules on sustainability and EU investments, delivering over €6 billion in administrative relief

Page contents

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- Description
- Files

Details

Publication date	26 February 2025
Author	Directorate-General for Financial Stability, Financial Services and Capital Markets Union

GENERAL PUBLICATIONS

De-prioritisation of Level 2 acts in financial services legislation

Page contents

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- Related links

Details

Publication date	6 October 2025
Author	Directorate-General for Financial Stability, Financial Services and Capital Markets Union

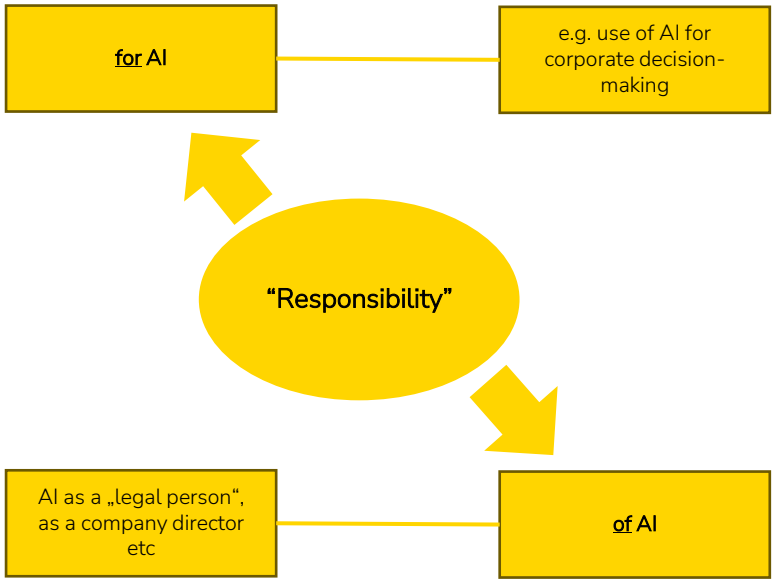
Description

The EU has a comprehensive legal framework, in which many of the rules are regulatory and implementing standards (Level 2) that supplement or specify the EU Regulations and Directives (Level 1). In the last legislature, level 1 acts empowered the Commission to adopt around 430 level 2 measures.

A high volume of level 2 acts can lead to compliance costs and regulatory complexity for stakeholders, while demanding significant resources from co-legislators to scrutinise them. In consultation with the EU co-legislators, the Commission informed the three European Supervisory Authorities and the Anti-Money laundering Authority (AMLA) that it will not adopt these non-essential acts before 1 October 2027. Where empowerments have legal deadlines, the Commission will propose to amend or repeal them during the upcoming revisions of the relevant Level 1 acts.

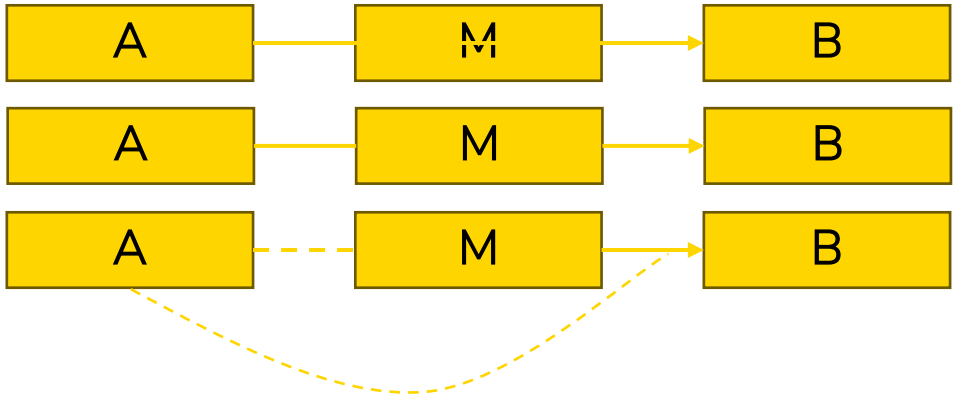
Responsibility – Accountability

- **Who** is accountable for an AI system?
- Can the "actions" (or, potentially the „knowledge") of an AI be **attributed to a natural or legal person**?
- Should AI be **recognized as a legal person**?
- "Responsibility" – "accountability"
- **Legal consequences and sanctions**
  <-> civil law – administrative law – criminal law



Example: AI and contract law

Can a declaration made by a machine/by using a machine be attributed to a person?



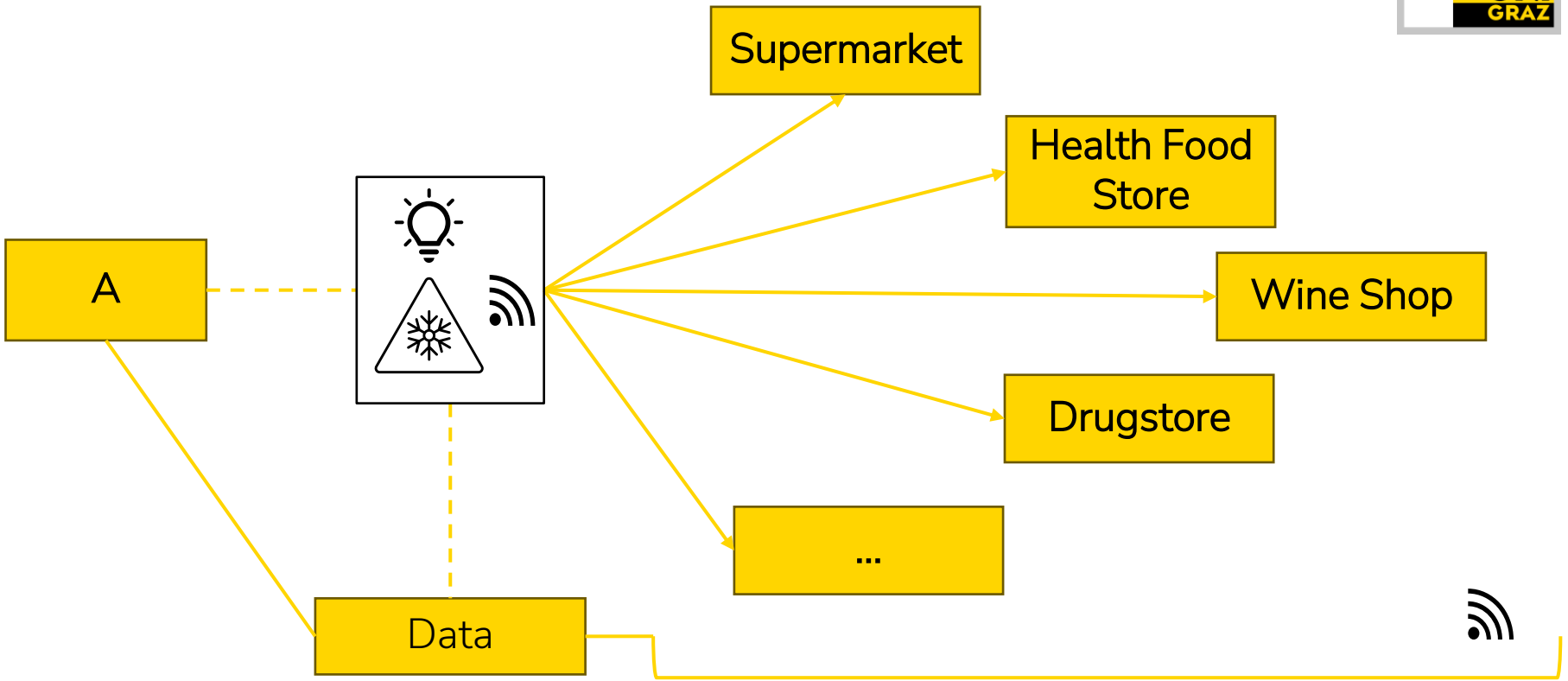
<-> transfer
<-> „automation“
<-> „autonomy“

„Machine-to-Machine Contracts“ (M2M-Contracts)

- <-> M2M communication, IoT
- <-> M2M payments – cf. Recital 55, art. 24 COM(2023) 369 final
- <-> Smart contracts



“Smart Fridge“



Example: Liability for AI

Can a person be held liable for the "actions" of an AI system?

- Fault-based liability – strict liability – product liability ⇒ Directive (EU) 2024/2853
- Liable person (manufacturer/provider/importer/distributor/deployer…)
- Burden of proof? (cf.-> COM/2022/496 final)
- AI as agents? Vicarious liability?
- Obligatory insurance schemes?
- Liability under copyright and data protection law

Cf. also studies on AI and liability (2019, 2020)







-> OGH 7. 10. 2025, 14 Os 95/25i

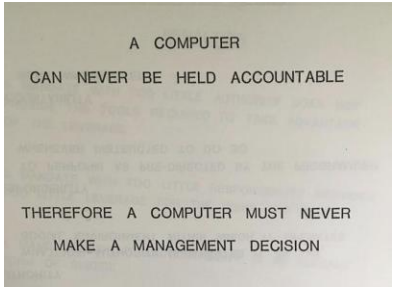
Example: Use of AI in board decision-making

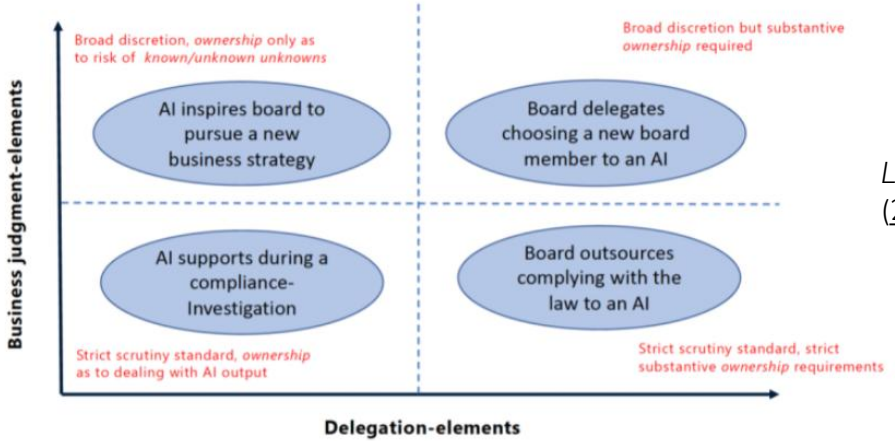
May the directors of a company rely on AI when making decisions?

<-> “self-driving” company?

– cf. *Armour/Eidenmüller* (2020)







Langenbucher (2024)

Preparation → Deployment → Results

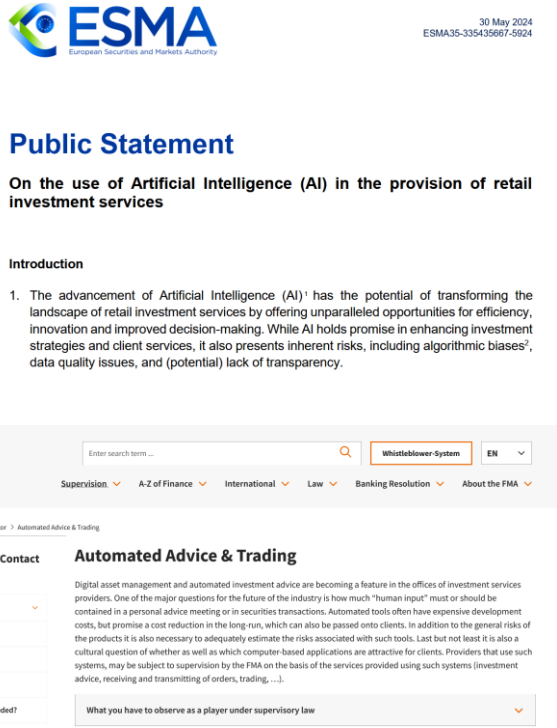
Example: Use of AI in the provision of financial services

May retail investment services be provided by the use of an AI?

<-> “robo-advice“

- In line with MiFID II-requirements (cf. art. 5)?
  -> Directive 2014/65/EU on markets in financial instruments
- ESMA warning on the use of AI for investing (2025)

Cf. **algorithmic trading** – art. 47 MiFID II



ESMA
European Securities and Markets Authority

30 May 2024
ESMA35-335435667-5924

Public Statement

On the use of Artificial Intelligence (AI) in the provision of retail investment services

Introduction

1. The advancement of Artificial Intelligence (AI)[1] has the potential of transforming the landscape of retail investment services by offering unparalleled opportunities for efficiency, innovation and improved decision-making. While AI holds promise in enhancing investment strategies and client services, it also presents inherent risks, including algorithmic biases[2], data quality issues, and (potential) lack of transparency.

FMA

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FinTech Point of Contact & Sandbox

FinTech Navigator

Read me first!

What is FinTech?

Licensing

Is a prospectus needed?

Automated Advice & Trading

Digital asset management and automated investment advice are becoming a feature in the offices of investment services providers. One of the major questions for the future of the industry is how much “human input” must or should be contained in a personal advice meeting or in securities transactions. Automated tools often have expensive development costs, but promise a cost reduction in the long-run, which can also be passed onto clients. In addition to the general risks of the products it is also necessary to adequately estimate the risks associated with such tools. Last but not least it is also a cultural question of whether as well as which computer-based applications are attractive for clients. Providers that use such systems, may be subject to supervision by the FMA on the basis of the services provided using such systems (investment advice, receiving and transmitting of orders, trading, ...).

What you have to observe as a player under supervisory law

Thank you for your attention!

University of Graz

Department of Foundations of Law

Section of Law and IT

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